
Engineer's Determination — Extension of Time, Pier P4 Ground Condition and Plant Breakdown

Nandira River Bridge Project — Package NRB-4

Document Reference:	ENG-NRB4-0072
Date:	10-Mar-2023
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Engineer, Meridian Engineering Consultants
To:	Contractor, Sagara Constructions Pvt. Ltd.

Subject: Determination — Claim CTR-NRB4-0142 — Extension of Time, Pier P4 Pile Position P4-N4

We refer to your Notice CTR-NRB4-0125 dated 09-Nov-2022, detailed particulars CTR-NRB4-0142 dated 20-Dec-2022, and Critical Path Analysis CPA-NRB4-001 dated 07-Feb-2023, claiming an extension of the Time for Completion of 6 weeks arising from the ground condition encountered at pile position P4-N4.

Having reviewed the particulars submitted, Geotechnical Investigation Report GEO-NRB4-004, Site Instruction SI-NRB4-027, and Critical Path Analysis CPA-NRB4-001, together with your Notice CTR-NRB4-0131 and Plant Breakdown Report EQR-NRB4-001 concerning Piling Rig PR-2, we make the following determination under Sub-Clause 8.4:

1. **ENTITLEMENT:** The ground condition encountered at pile position P4-N4 is accepted as an Unforeseeable physical condition within the meaning of Sub-Clause 4.12, and as falling within Sub-Clause 8.4(b). The condition was not shown, and could not reasonably have been inferred, from the geotechnical information provided with the tender documents.
2. **CONCURRENCY:** Your own Critical Path Analysis CPA-NRB4-001 confirms that the unavailability of Piling Rig PR-2, a cause for which the Contractor is responsible, was operative between 07-Nov-2022 and 28-Nov-2022, a period falling entirely within the 6-week ground condition period. We do not accept CPA-NRB4-001's conclusion that the plant breakdown had no independent effect on the critical path: on a plain reading of the dates in CPA-NRB4-001 itself, had Rig PR-2 remained available throughout, boring at pile position P4-N4 could have continued, in parallel with the geotechnical investigation and redesign process, up to the point the revised design was actually issued under SI-NRB4-027, such that the rig's unavailability was, for the 3-week period it persisted, an equally operative cause of the Contractor's inability to progress that pile position.
3. **APPORTIONMENT:** In accordance with Sub-Clause 8.4's provision for apportionment where a delay results partly from a cause described in that Sub-Clause and partly from a cause for which the Contractor is responsible, we apportion the 6-week period as follows: the 3-week period from 03-Nov-2022 to 07-Nov-2022 and from 28-Nov-2022 to 15-Dec-2022, during which the ground condition alone affected progress at pile position P4-N4, is attributable solely to the ground condition. The 3-week concurrent period from 07-Nov-2022 to 28-Nov-2022, during which both the ground condition and the unavailability of Rig PR-2 were operative, is not attributed solely to the ground condition, a Contractor-risk cause having been equally operative throughout.

4. DETERMINATION: An extension of the Time for Completion of 3 weeks is hereby granted under Sub-Clause 8.4, revising the Time for Completion accordingly. No extension of time is granted in respect of the 3-week concurrent period. No additional payment is due in respect of the concurrent period; a revision to the Time for Completion under this Sub-Clause does not, of itself, entitle the Contractor to additional payment in any event.

This determination does not address, and is without prejudice to, any other notice or claim the Contractor may have submitted or may submit in respect of any other event or circumstance.

Signed: Engineer's Representative
Meridian Engineering Consultants